

25CMCV00136 25CMCV00136

County: los-angeles

Division: Civil Law and Motion

Department: A

Hearing date: 2026-08-04

Motion: DEFENDANT'S MOTION FOR JUDGMENT ON THE PLEADINGS

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Case Number: 25CMCV00136 Hearing Date: August 4, 2026 Dept: A

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES – SOUTH CENTRAL DISTRICT

RAYKEE SANDERS,

Plaintiff,

vs.

FCA US,

LLC, et al.,

Defendants.

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CASE NO: 25CMCV00136

[TENTATIVE]

ORDER RE: DEFENDANT'S MOTION FOR JUDGMENT ON THE PLEADINGS

Dept.

A

DATE:

August 4, 2026

TIME:

8:30 A.M.

COMPLAINT

FILED: 01/24/2025

TRIAL:

03/03/2027

MOVING

PARTY: Defendant FCA US, LLC

RESPONDING

PARTY: Plaintiff Raykee Sanders

1. Background

This is an action brought under the Song-Beverly Act. Plaintiff Raykee Sanders ("Plaintiff") alleges that on November 14, 2017, she entered into a warranty contract with Defendant FCA US, LLC ("Defendant") concerning a 2018 Dodge Charger (the "Vehicle"). Plaintiff alleges that, during the express warranty period, defects and nonconformities to warranty manifested themselves in the Vehicle, substantially impairing the use, value, and/or safety of the Vehicle.

2. Discussion

Defendant moves for judgment on the pleadings on the grounds that the complaint is time-barred. Defendant contends that the statute of limitations for a Song-Beverly action is four years, and the statute of limitations on a fraud cause of action is three years, and therefore Plaintiff's action is time-barred, as Plaintiff purchased the Vehicle in 2017. In opposition, Plaintiff contends that the discovery rule applies to preserve Plaintiff's claims.

A motion for judgment on the pleadings has the same function as a general demurrer but is made after the time for demurrer has expired. (Code Civ. Proc. § 438, subd. (f).) Judgment on the pleadings is proper when "the complaint states facts sufficient to constitute a cause or causes of action against the defendant and the answer does not state facts sufficient to constitute a defense to the complaint." (Code Civ. Proc. § 438, subd. (c)(1)(A).)

Except as provided by statute, the rules governing demurrers apply. (Civic Partners Stockton, LLC v. Youssefi (2013) 218 Cal.App.4th 1005, 1012.) "Like a demurrer, the grounds for the motion [for judgment on the pleadings] must appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice." (Id.

at 1013.) In ruling on a motion for judgment on the pleadings, “[a]ll allegations in the complaint and matters upon which judicial notice may be taken are assumed to be true.” (Rippon v. Bowen (2008) 160 Cal.App.4th 1308, 1313.) However, a party's admissions or concessions of matters which cannot reasonably be controverted are properly considered on a motion for judgment on the pleadings. (Evans v. California Trailer Court, Inc. (1994) 28 Cal.App.4th 540, 549 (overruled in part on other grounds).)

A demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747 (Hahn).) When considering demurrers, courts read the allegations liberally and in context. (Taylor v. City of Los Angeles Dept. of Water and Power (2006) 144 Cal.App.4th 1216, 1228.) In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) “A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed.” (SKF Farms v. Superior Court (1984) 153 Cal.App.3d 902, 905.) “The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action.” (Hahn, supra, 147 Cal.App.4th at p. 747.)

The ultimate facts alleged in the complaint must be deemed true, as well as all facts that may be implied or inferred from those expressly alleged. (Marshall v. Gibson, Dunn & Crutcher (1995) 37 Cal.App.4th 1397, 1403; see also Shields v. County of San Diego (1984) 155 Cal.App.3d 103, 133 [stating, “[o]n demurrer, pleadings are read liberally and allegations contained therein are assumed to be true.”]) “The court does not, however, assume the truth of contentions, deductions or conclusions of law. [Citation.]” (Durell v. Sharp Healthcare (2010) 183 Cal.App.4th 1350, 1358.)

a. Plaintiff's first, second, and third causes of action are not time-barred

Defendant contends that the express warranty on the Vehicle expired on November 14, 2022, and that therefore Plaintiff's claims accrued no later than that date. Defendant contends that, under Code of Civil Procedure § 871.21, the statute of

limitations on a Song-Beverly action is the earlier of one year after expiration of the express warranty or six years after the purchase of the Vehicle, and therefore Plaintiff's first, second, and third causes of action are time-barred as based on the express warranty.

In opposition, Plaintiff contends that this interpretation of the statute would constitute an unconstitutional retroactive application of Section 871.21, as it would require Plaintiff to have filed her claim by November 14, 2023 despite the statute itself having become effective on January 1, 2025.

Where a change in remedy is retroactively made in law, such as the shortening of a time limit provision, there must be a reasonable time permitted for the affected party to exercise their remedy before the statute takes effect. (*Rosefield Packing Co. v. Superior Court in and for City and County of San Francisco* (1935) 4 Cal.2d 120, 122 (*Rosefield*).)

If the statute operates immediately to cut off the existing remedy for a party, then the retroactive application of it is unconstitutional as to that party. (*Id.* at pp. 122-123.) "In California, statutes of limitations, being procedural, are normally retroactively applied to accrued causes of action; but the court must inquire whether, in a given case, that retrospective application may violate due process by in effect eliminating the plaintiff's right." (*Aronson v. Superior Court* (1987) 191 Cal.App.3d 294, 297 (*Aronson*).)

The instant action was filed on January 24, 2025. However, the warranty agreement was entered into on November 14, 2017. According to the Ford Warranty Guide provided as Exhibit A to the complaint, this is the date on which the Vehicle was delivered. Based on this date, the statute of repose would require the instant action to have been filed not later than November 14, 2023, before the effective date of Section 871.21. The enactment of this statute operated to immediately cut off Plaintiff's existing remedy and, under *Rosefield*, cannot constitutionally be retroactively applied as to the instant action. (See also *Aronson*, *supra*, 191 Cal.App.3d at p. 297 ["statutes of limitations, being procedural, are normally retroactively applied to accrued causes of action; but... [i]f no time is left [to file suit], or only an unreasonably short time remains, then the statute cannot be applied at all.].) Although *Aronson* and *Rosefield* directly pertain to statutes of limitation rather than statutes of repose, the same due process concerns are applicable to

one as to the other. "Whereas statutes of limitations affect a remedy, statutes of repose extinguish a right of action after the period has elapsed.... The effect of a statute of repose 'is [thus] harsher than a statute of limitations in that it cuts off a right of action after a specified period of time, irrespective of accrual or even notice that a legal right has been invaded.' [Citation.]" (PGA West Residential Assn., Inc. v. Hulven Internat., Inc. (2017) 14 Cal.App.5th 156, 177.) A statute of repose that extinguishes a plaintiff's right of action immediately upon its effective date based on retroactive application therefore infringes on the plaintiff's due process rights, as is the case here, as it leaves no reasonable time in which to sue after the effective date of the statute.

"Whether there was a reasonable time in these cases is not a matter committed to the discretion of the trial court. The question is one of constitutionality of the statute which in terms applies to the pending case; and if it appears that there was a reasonable time for exercise of the remedy before the statutory bar became fixed, the lower court cannot consider individual hardship or other circumstances, but must give effect to the express provisions of the law." (Rosefield, supra, 4 Cal.2d at p. 124.) Correspondingly, where there is not a reasonable time for exercise of the remedy after the amendment's effective date, it is similarly outside of the court's discretion whether the statute may be applied, as it is a question of constitutionality of the statute as applied to the case.

Defendant contends that Section 871.21 does not act to retroactively cut off Plaintiff's causes of action because Plaintiff became aware of nonconformities to warranty during the applicable express warranty period. It is unclear to the court how these statements logically follow. Irrespective of whether Plaintiff became aware of nonconformities to warranty during the express warranty period, prior to the enactment of Section 871.21, Plaintiff's causes of action were not clearly time-barred due to application of the discovery rule. After Section 871.21 became effective, Plaintiff's causes of action immediately and retroactively became time-barred.

As Code of Civil Procedure § 871.21, as of its effective date, immediately and retroactively cut off Plaintiff's causes of action, it cannot constitutionally be applied to the instant action. It therefore does not operate to bar Plaintiff's first, second, and third causes of action in the instant action.

b. Plaintiff's fourth cause of action for breach of

implied warranty is not time-barred

Defendant contends that the court cause of action for breach of implied warranty is time-barred because a cause of action for breach of implied warranty has a four-year statute of limitations, and the instant action was filed more than four years after purchase and delivery of the Vehicle under Commercial Code § 2725.

Commercial Code § 2725 provides that “A cause of action accrues when the breach occurs, regardless of the aggrieved party's lack of knowledge of the breach. A breach of warranty occurs when tender of delivery is made, except that where a warranty explicitly extends to future performance of the goods and discovery of the breach must await the time of such performance the cause of action accrues when the breach is or should have been discovered.”

In *Krieger v. Nick Alexander Imports, Inc.* (1991) 234 Cal.App.3d 205, the court stated that “[a] promise to repair defects that occur during a future period is the very definition of express warranty of future performance,” in response to the defendant “[taking] the position that it did not promise that its automobiles would perform satisfactorily during the warranty period” and instead claiming that “it only promised to repair any defects which occurred.” (*Krieger, supra*, 235 Cal.App.3d at p. 217.) *Krieger* is therefore applicable to the instant motion to establish that the statute of limitations on Plaintiff's claims arose when Plaintiff discovered the defects in the Vehicle, rather than at the time of sale, under Commercial Code § 2725. “By providing a duration period for the implied warranty of merchantability, Civil Code section 1795.5, subdivision (c), contemplates that a breach may occur either when the goods are first purchased, or afterwards, when a latent defect is discovered by the buyer.” (*Jones v. Credit Auto Center, Inc.* (2015) 237 Cal.App.4th Supp. 1, 9.) “In the case of a latent defect, the implied warranty is breached by the existence of the unseen defect, not by its subsequent discovery.” (*Mexia v. Rinker Boat Co., Inc.* (2009) 174 Cal.App.4th 1297, 1305.)

Plaintiff contends in the complaint that defects and nonconformities to warranty manifested themselves during the applicable express warranty period. (Compl. ¶ 12.) This warranty, as described in Exhibit A to the complaint, is the bumper-to-bumper warranty providing coverage for three years or 36,000 miles, whichever came first; one of several

other warranties providing coverage for five years or 60,000 miles, whichever came first; or the corrosion/perforation warranty providing coverage for five years. Plaintiff has also alleged that "Plaintiff discovered Defendant's wrongful conduct alleged herein shortly before filing this action." (Compl. ¶ 25.) As the Vehicle was purchased on November 14, 2017, and Defendant has conceded that the five-year powertrain limited warranty applies, Plaintiff's complaint indicates that discovery of the defects and nonconformities to warranty would have been discovered at the latest on November 14, 2017. Accordingly, irrespective of the end of the implied warranty period, the statute of limitations would begin running from, at the latest, November 14, 2017, which would place the date of filing of the action on January 24, 2025 within the four-year statute of limitations.

Plaintiff's fourth cause of action for breach of the implied warranty of merchantability is therefore not time-barred on the face of the complaint.

c. Plaintiff's sixth cause of action for fraudulent inducement – concealment is not time-barred and is adequately pled

Defendant contends that Plaintiff's fraudulent inducement – concealment claim is time-barred because there is a three-year statute of limitations for fraud and Plaintiff purchased the Vehicle on November 14, 2017, and filed their claim on January 24, 2025, more than three years after the purchase. However, the discovery rule permits the postponement of a statute of limitations period due to a plaintiff's lack of discovery of the facts establishing the elements of their cause of action. (*Daley v. Regents of the University of California* (2019) 39 Cal.App.5th 595, 603-604.)

As previously noted, Plaintiff's claim accrued, at the latest, on November 14, 2017. Plaintiff's filing of the complaint on January 24, 2025 is within the three-year statute of limitations from that date, and therefore Plaintiff's sixth cause of action is not time-barred on the face of the complaint.

Defendant also contends that Plaintiff's sixth cause of action for fraudulent inducement – concealment lacks specificity, that Defendant owed Plaintiff no duty of disclosure, and that the claim is barred by the economic loss rule.

The necessary elements of a fraud claim consist of (1) a misrepresentation; (2) the defendant's knowledge of the falsity; (3) the intent to induce reliance; (4) justifiable reliance on the defendant's statements or lack thereof; and (5) resulting damages. (*Hoffman v. 162 North Wolfe LLC* (2014) 228 Cal.App.4th 1178, 1185-1186.) In order to demonstrate fraudulent concealment, a plaintiff must show that (1) the defendant is in a fiduciary relationship with the plaintiff; (2) the defendant had exclusive knowledge of material facts not known to the plaintiff; (3) the defendant concealed a material fact from the plaintiff; or (4) the defendant makes some partial representations but also suppresses some material facts. (*Los Angeles Memorial Coliseum Com. v. Insomniac, Inc.* (2015) 233 Cal.App.4th 803, 831.)

Fraud in the inducement is a subset of fraud that occurs when a promisor's consent to an agreement is induced by fraud. (*Dhital v. Nissan North America, Inc.* (2022) 84 Cal.App.5th 828, 839 (Dhital).) Fraud must be alleged with specificity, such that the complaint alleges the factual underpinnings of the claim. (*Rattagan v. Uber Technologies, Inc.* (2024) 17 Cal.5th 1, 43 (Rattagan).) In a fraudulent concealment case, the complaint must include specific allegations "establishing all the required elements, including (1) the content of the omitted facts, (2) defendant's awareness of the materiality of those facts, (3) the inaccessibility of the facts to plaintiff, (4) the general point at which the omitted facts should or could have been revealed, and (5) justifiable and actual reliance, either through action or forbearance, based on the defendant's omission." (*Id.*, at pp. 43-44.)

Defendant contends that Plaintiff failed to plead what the defect in the Vehicle is. However, Plaintiff alleged that the engine was defective, "which may result in loss of power, stalling, engine running rough, engine misfires, failure or replacement of the engine." (Compl. ¶ 64.) In light of the requirement to read the allegations in the complaint liberally and in context at the demurrer stage, the court therefore finds that Plaintiff adequately pled the defect in the Vehicle.

Defendant contends that it owed Plaintiff no duty of disclosure because it did not have a direct transactional relationship with Plaintiff. Defendant is incorrect. A direct transactional relationship is not required to establish a duty to

disclose. (OCM Principal Opportunities Fund, L.P. v. CIBC World Markets Corp. (2007) 157 Cal.App.4th 835, 859 (OCM).) Defendant cites to LiMandri v. Judkins (1997) 52 Cal.App.4th 326 for the proposition that a duty to disclose may only arise in the context of a direct transactional relationship if there is no fiduciary relationship. Although this requires some level of transactional relationship, it does not require a direct transactional relationship as Defendant contends. (OCM, supra, 147 Cal.App.4th at p. 859; see also Bader v. Johnson & Johnson (2022) 86 Cal.App.5th 1094, 1132.)

Defendant also

cites to Bigler-Engler v. Breg, Inc. (2017) 7 Cal.App.5th 276 for the same proposition. The court in Bigler-Engler states that “Such a transaction must necessarily arise from direct dealings between the plaintiff and the defendant; it cannot arise between the defendant and the public at large.” However, Bigler-Engler is distinguishable because the defendant in Bigler-Engler did not transact with the plaintiffs in any way, market directly to consumers like the plaintiffs, or otherwise have direct contact with consumers like the plaintiffs. (Bigler-Engler, supra, 7 Cal.App.5th at p. 314.) Here, by contrast, the complaint alleges that Defendant entered into a warranty contract with Plaintiff, and therefore had direct dealings with Plaintiff distinct from any dealings with the public at large irrespective of whether the sales transaction was conducted directly or through a dealership. (Compl. ¶ 7.) Bigler-Engler is therefore inapposite.

Plaintiff has pled circumstances indicating

that Defendant had exclusive knowledge of material facts not known to Plaintiff by stating, in the complaint, that Defendant manufactured and/or distributed the Vehicle, that Defendant had knowledge of the defect in the Vehicle through sources not available to consumers such as Plaintiff, and Plaintiff could not reasonably have been expected to learn of the defect until after purchase of the Vehicle. (Compl. ¶¶ 7, 66-69.) Plaintiff has therefore adequately pled that Defendant had a duty to disclose.

Defendant additionally contends that the

fraudulent inducement – concealment claim is barred by the economic loss rule.

Defendant cites Rattagan v. Uber Technologies, Inc. (2024) 17 Cal.5th 1 for the proposition that

the economic loss rule bars fraud claims that result only in economic loss. Rattagan does not stand for this proposition; rather,

the court in Rattagan

expressly stated that claims for fraudulent concealment are expressly exempted

from the economic loss rule. (Rattagan,
supra, 17 Cal.5th at p. 38.)

Therefore, Plaintiff has adequately pled her
sixth cause of action for fraudulent inducement – concealment and Plaintiff's
causes of action are not time-barred. The court will therefore deny Defendant's
motion for judgment on the pleadings.

3. Conclusion

Based on the
foregoing, the court DENIES Defendant's motion for judgment on the pleadings.

Defendant is ordered to give notice.

IT IS SO ORDERED.

DATED: August 4, 2026

Hon. Elizabeth L. Bradley

Judge of the Superior Court